

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 993

Introduced by McKinney, 11.

Read first time January 13, 2026

Committee: Judiciary

1 A BILL FOR AN ACT relating to civil actions; to amend sections 13-903 and
2 81-8,210, Reissue Revised Statutes of Nebraska; to provide for a
3 cause of action for deprivation of constitutional rights by law
4 enforcement officers; to define and redefine terms; to eliminate the
5 defense of qualified immunity as prescribed; to require
6 indemnification by public employers; to waive sovereign immunity for
7 certain claims against law enforcement officers and exempt such
8 claims from the Political Subdivisions Tort Claims Act and State
9 Tort Claims Act; to provide an operative date; to provide
10 severability; and to repeal the original sections.
11 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** The Legislature finds and declares that:

2 (1) The protection of constitutional rights is essential to
3 maintaining public trust in law enforcement;

4 (2) The judicial doctrine of qualified immunity has, in practice,
5 denied many Nebraskans a remedy for violations of their state and federal
6 constitutional rights;

7 (3) The State of Nebraska has a compelling interest in ensuring that
8 all persons within its jurisdiction have access to justice and
9 accountability when their rights are violated by government actors; and

10 (4) It is the intent of the Legislature to create an independent,
11 state-based civil remedy for deprivation of constitutional rights and to
12 eliminate qualified immunity as a defense to such claims.

13 **Sec. 2.** For purposes of sections 1 to 6 of this act:

14 (1) Constitutional right means any right, privilege, or immunity
15 guaranteed by the Constitution of the United States or the Constitution
16 of Nebraska;

17 (2) Law enforcement officer means:

18 (a) A law enforcement officer as defined in section 81-1401;

19 (b) A peace officer as defined in section 49-801;

20 (c) A correctional officer; or

21 (d) A probation officer;

22 (3)(a) Public employer means the state, any state agency, or any
23 political subdivision.

24 (b) Public employer does not include a contractor of the state, a
25 state agency, or a political subdivision;

26 (4) Political subdivision has the same meaning as in section 13-903;
27 and

28 (5) State agency has the same meaning as in section 81-8,210.

29 **Sec. 3.** (1) A person who has been deprived of any constitutional
30 right by a law enforcement officer acting under color of law may bring a
31 civil action for appropriate relief.

1 (2) In an action under this section, appropriate relief includes:

2 (a) Compensatory damages, including for physical injury, pain and
3 suffering, emotional distress, loss of liberty, or loss of reputation;

4 (b) Punitive damages when the officer's conduct is determined to be
5 willful, wanton, or malicious;

6 (c) Such preliminary and other equitable or declaratory relief as
7 may be appropriate; and

8 (d) Reasonable attorney's fees and other litigation costs reasonably
9 incurred.

10 (3) In any action brought under this section, qualified immunity or
11 any substantially similar defense shall not be available to the
12 defendant.

13 (4) Any punitive damages awarded under this section shall be
14 remitted to the State Treasurer for distribution in accordance with
15 Article VII, section 5, of the Constitution of Nebraska.

16 (5) The cause of action provided for in this section is independent
17 of and in addition to any other remedy provided by state or federal law.

18 **Sec. 4.** (1) A public employer shall indemnify its law enforcement
19 officers for any judgment entered against them in an action under section
20 3 of this act, unless the officer acted in bad faith or with malicious
21 intent.

22 (2) If the public employer determines that indemnification is not
23 required under subsection (1) of this section, it shall provide written
24 notice to the officer and the plaintiff within thirty days after the
25 entry of judgment.

26 **Sec. 5.** An action brought under section 3 of this act shall be
27 filed within three years after the cause of action accrues.

28 **Sec. 6.** (1) Sovereign immunity is waived for any claim brought
29 pursuant to section 3 of this act.

30 (2) A claim under section 3 of this act is not subject to the
31 Political Subdivisions Tort Claims Act or the State Tort Claims Act.

1 **Sec. 7.** Section 13-903, Reissue Revised Statutes of Nebraska, is
2 amended to read:

3 13-903 For purposes of the Political Subdivisions Tort Claims Act
4 and sections 16-727, 16-728, 23-175, 39-809, and 79-610, unless the
5 context otherwise requires:

6 (1) Political subdivision includes ~~shall include~~ villages, cities of
7 all classes, counties, school districts, learning communities, public
8 power districts, and all other units of local government, including
9 entities created pursuant to the Interlocal Cooperation Act or Joint
10 Public Agency Act. Political subdivision shall not be construed to
11 include any contractor with a political subdivision;

12 (2) Governing body means ~~shall mean~~ the village board of a village,
13 the city council of a city, the board of commissioners or board of
14 supervisors of a county, the board of directors of a public power
15 district, the governing board or other governing body of an entity
16 created pursuant to the Interlocal Cooperation Act or Joint Public Agency
17 Act, and any duly elected or appointed body holding the power and
18 authority to determine the appropriations and expenditures of any other
19 unit of local government;

20 (3) Employee of a political subdivision means ~~shall mean~~ any one or
21 more officers or employees of the political subdivision or any agency of
22 the subdivision and shall include members of the governing body, duly
23 appointed members of boards or commissions when they are acting in their
24 official capacity, volunteer firefighters, and volunteer rescue squad
25 personnel. Employee shall not be construed to include any contractor with
26 a political subdivision; and

27 (4)(a) ~~(4)~~ Tort claim means ~~shall mean~~ any claim against a political
28 subdivision for money only on account of damage to or loss of property or
29 on account of personal injury or death, caused by the negligent or
30 wrongful act or omission of any employee of the political subdivision,
31 while acting within the scope of his or her office or employment, under

1 circumstances in which the political subdivision, if a private person,
2 would be liable to the claimant for such damage, loss, injury, or death
3 but shall not include any claim accruing before January 1, 1970.

4 (b) Tort claim does not include an action against a law enforcement
5 officer under section 3 of this act.

6 **Sec. 8.** Section 81-8,210, Reissue Revised Statutes of Nebraska, is
7 amended to read:

8 81-8,210 For purposes of the State Tort Claims Act:

9 (1) State agency includes all departments, agencies, boards,
10 bureaus, and commissions of the State of Nebraska and corporations the
11 primary function of which is to act as, and while acting as,
12 instrumentalities or agencies of the State of Nebraska but shall not
13 include corporations that are essentially private corporations or
14 entities created pursuant to the Interlocal Cooperation Act or the Joint
15 Public Agency Act. State agency does not include any contractor with the
16 State of Nebraska;

17 (2) State Claims Board means the board created by section 81-8,220;

18 (3) Employee of the state means any one or more officers or
19 employees of the state or any state agency and shall include duly
20 appointed members of boards or commissions when they are acting in their
21 official capacity. State employee does not include any employee of an
22 entity created pursuant to the Interlocal Cooperation Act or the Joint
23 Public Agency Act or any contractor with the State of Nebraska;

24 (4)(a) ~~(4)~~ Tort claim means any claim against the State of Nebraska
25 for money only on account of damage to or loss of property or on account
26 of personal injury or death caused by the negligent or wrongful act or
27 omission of any employee of the state, while acting within the scope of
28 his or her office or employment, under circumstances in which the state,
29 if a private person, would be liable to the claimant for such damage,
30 loss, injury, or death but does not include any claim accruing before
31 January 1, 1970, any claim against an employee of the state for money

1 only on account of damage to or loss of property or on account of
2 personal injury or death caused by the negligent or wrongful act or
3 omission of the employee while acting within the scope of his or her
4 employment occurring on or after August 25, 1989, and any claim allowed
5 under the Nebraska Claims for Wrongful Conviction and Imprisonment Act. ÷

6 (b) Tort claim does not include an action against a law enforcement
7 officer under section 3 of this act;

8 (5) Award means any amount determined by the Risk Manager or State
9 Claims Board to be payable to a claimant under section 81-8,211 or the
10 amount of any compromise or settlement under section 81-8,218; and

11 (6) Risk Manager means the Risk Manager appointed under section
12 81-8,239.01.

13 **Sec. 9.** This act becomes operative on January 1, 2027.

14 **Sec. 10.** If any section in this act or any part of any section is
15 declared invalid or unconstitutional, the declaration shall not affect
16 the validity or constitutionality of the remaining portions.

17 **Sec. 11.** Original sections 13-903 and 81-8,210, Reissue Revised
18 Statutes of Nebraska, are repealed.